# GENDERED LEGAL AND POLICY ANALYSIS MANUAL




Developed by the Consortium of Self-help group Approach Promoters (CoSAP)
Supported By UN Women Ethiopia

# Acknowledgement

This Gendered Policy and Legal Analysis (GPLA) Manual is the result of a collaborative effort made possible through the unwavering support, commitment, and expertise of many individuals and institutions.

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With sincere regards,

CoSAP Ethiopia

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*Disclaimer: This document has been produced independently by CoSAP. The analysis and recommendations contained herein are solely the responsibility of the authors and do not reflect the official position or endorsement of UN Women.*

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# Abbreviation

| | |
|---|---|
| AU | African Union |
| CCRDA | Consortium of Christian Relief and Development Associations |
| CEDAW | Convention on the Elimination of All Forms of Discrimination Against Women |
| CoSAP | The Consortium of Self-help group Approach Promoters |
| CSO | Civil Society Organization |
| DPG | Development Partners Group |
| ECSOC | Ethiopian Civil Society Organizations Council |
| EHRC | Ethiopian Human Rights Commission |
| EWLA | Ethiopian Women Lawyers Association |
| EWRA | Ethiopian Women's Rights Advocates |
| FAO | Food and Agriculture Organization |
| FDRE | Federal Democratic Republic of Ethiopia |
| FGM | Female Genital Mutilation |
| GBV | Gender-Based Violence |
| GPLA | Gendered Policy and Legal Analysis |
| GRB | Gender-Responsive Budgeting |
| HR | Human Rights |
| IBPA | Intersectionality-Based Policy Analysis |
| ODI | Overseas Development Institute |
| UN Women | United Nations Entity for Gender Equality and the Empowerment of Women |

# Executive Summary

This manual provides a practical framework for organizations in Ethiopia to conduct gendered legal and policy analysis. It is a crucial tool for addressing the persistent gap between de jure (legal) equality and de facto (actual) outcomes for women and other marginalized groups. While Ethiopia has made significant legal and constitutional commitments to gender equality, systemic inequalities often mean that seemingly neutral laws can produce and perpetuate unequal results.

The manual is designed for Women's Rights Organizations (WROs), Civil Society Organizations (CSOs), and gender justice advocates. Its primary purpose is to build their capacity to identify and respond to gender biases and power imbalances within legal and policy frameworks. By providing a systematic methodology, step-by-step guidance, and real-life examples, the manual enables users to conduct evidence-based analysis and advocacy.

The core of the manual is its analytical approach, which is grounded in four key principles: feminist approach, intersectionality based policy analysis framework, rights-based framework, and localization.

It also details how to apply this analysis at various stages of the policy cycle, from agenda setting and policy formulation to implementation and monitoring. This strategic engagement empowers organizations to proactively influence public policy and ensure that laws and regulations actively contribute to transformative change, rather than simply existing on paper.

The manual also includes a variety of templates and tools that can be adapted and reused for policy and legal analysis, training, community awareness, and internal assessments, further strengthening the institutional capacity of its target users.

# Table of Contents


Acknowledgement 0
Abbreviation 1
Executive Summary 2
Table of Contents 3
1 Introduction 4
- 1.1 Purpose of the Manual 5
- 1.2 Target Users 5
- 1.3 How to Use the Manual: Accountability and Implementation Guidance 5
- 1.4 Guiding Principles 6

2 Understanding Gendered Legal and Policy Analysis 8
- 2.1 What Is Gendered Legal and Policy Analysis? 8
- 2.2 Why Gendered Legal & Policy Analysis Matters 9
- 2.3 Frameworks and Standards 11
- 2.4 International and Regional Instruments 11
- 2.5 Ethiopia's National Legal and Policy Frameworks 13
- 2.6 Legal Pluralism & the Role of Customary & Religious Norms in Gendered Legal & Policy Analysis 15
- 2.7 Gender Analysis Frameworks in Use 15

3 Synthesis of the Gendered Policy Analysis Framework: A Step-by-Step Process 16
- 3.1 The Step-by- Step guide 17

4 Practical Tools and Templates 19
- 4.1 Gendered Policy/Legal Analysis Checklist 19
- 4.2 Legal/Policy Audit Checklist 20
- 4.3 Intersectional Impact Matrix 20
- 4.4 Policy Influence Planning Sheet 20
- 4.5 Advocacy Tracking Sheet 21
- 4.6 Gender Budgeting Snapshot 21
- 4.7 Gender Auditing Snapshot 22
- 4.8 Scorecard for Implementation Review 25

5 Conclusion 26

# 1 Introduction

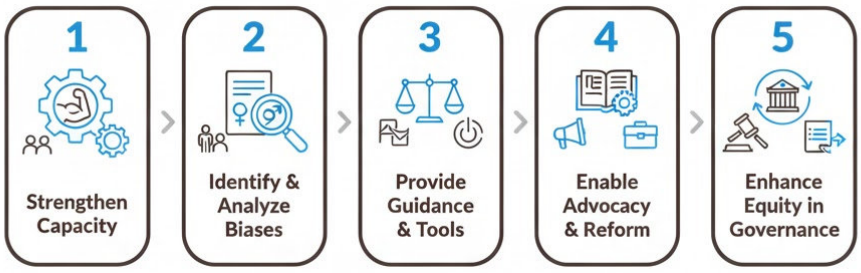


This manual introduces gendered legal and policy analysis as a critical tool for identifying and addressing gender inequality. Gender inequality is a global issue, deeply embedded in political, economic, legal, and cultural systems, with particular relevance for countries like Ethiopia. While international agreements, such as the Beijing Platform for Action, and legal frameworks, like the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW), have established gender equality as a fundamental human right and a development priority, a significant gap often exists between de jure (legal) equality and de facto (actual) outcomes.

The simple existence of formal legal equality does not automatically lead to substantive equality. Many legal and policy systems contain structural inequalities that may be explicit (overtly discriminatory laws) or subtle (ingrained biases and unequal resource allocation). These systemic issues can make seemingly neutral laws produce and perpetuate unequal outcomes for women and other marginalized groups.

Gendered legal and policy analysis is a systematic methodology for evaluating the different impacts of laws, policies, and regulations on individuals based on their gender. This rigorous approach uses feminist, intersectional, and human rights-based frameworks to uncover both obvious and hidden forms of gender-based discrimination. It goes beyond merely examining the content of a law to also analyze its implementation and practical outcomes in people's lives. The ultimate goal is to propose effective solutions to rectify these disparities, making this analysis a vital tool for achieving transformative justice and equitable governance.

## 1.1 Purpose of the Manual




This manual is developed to serve as a practical and accessible tool for Women's Rights Organizations (WROs), Civil Society Organizations (CSOs), and gender justice advocates working to influence legal and policy frameworks through a gendered lens. Its core purpose is to strengthen the capacity of these actors to identify, analyze, and respond to gender biases and power imbalances in laws, policies, and implementation practices across Ethiopia.

By providing step-by-step guidance, real-life examples, and adaptable tools, the manual enables users to conduct gendered legal and policy analysis that is not only technically sound but also context-sensitive and action-oriented. The ultimate goal is to equip practitioners with the skills to generate evidence-based advocacy, contribute to legal reform, and enhance gender equity in governance and decision-making processes.

## 1.2 Target Users

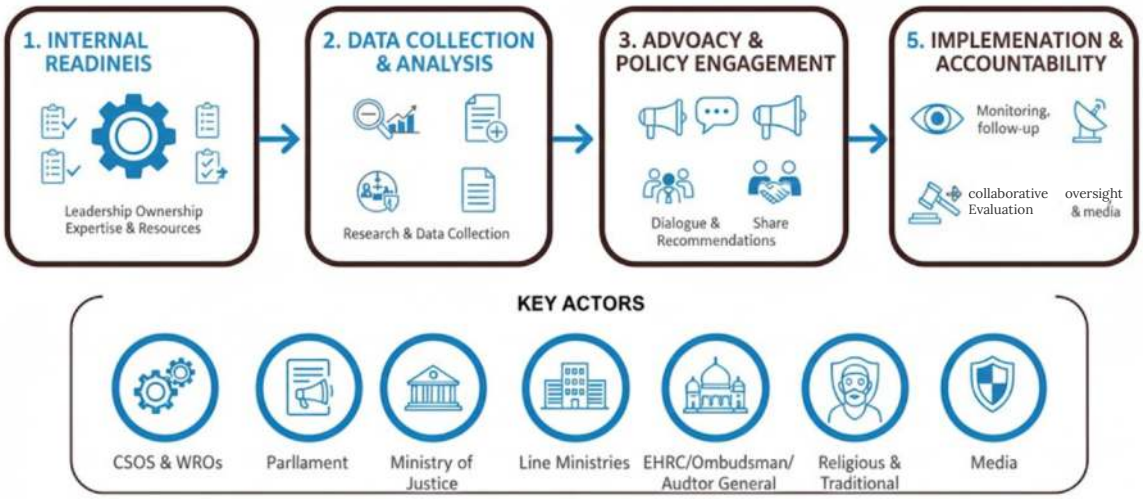
This manual is specifically designed for:




- WROs advocating for women's rights, legal reform, and equality in public life;
- CSOs engaged in governance, legal aid, service delivery, or policy advocacy;
- Community-based organizations and grassroots movements working on social justice and inclusion;
- Government organizations ,Legal practitioners, academicians, activists, researchers, and community educators who require simplified, localized tools to influence policy discourse and legal reform.

## 1.3 How to Use the Manual: Accountability and Implementation Guidance

This manual is designed not only as a technical guide for conducting gendered legal and policy analysis (GPLA) but also as a practical roadmap for ensuring that analysis leads to concrete influence and accountability. It is structured to Women's Rights Organizations (WROs), support Civil Society Organizations (CSOs), and allied actors throughout the entire GPLA journey, from planning and analysis to advocacy, implementation, and follow-up.




### 1.3.1 Strengthening accountability through GPLA

To ensure that gendered analysis leads to real change, this manual introduces an accountability lens throughout the GPLA process. Accountability is not the sole responsibility of analysts; it is shared across actors who influence and implement policy, including CSOs, government institutions, and oversight bodies.

### 1.3.2 Key Roles and Responsibilities

- CSOs & WROs: Conduct GPLA, translate findings into advocacy, engage in policy dialogue, track follow-up, and report back to communities.
- Parliament (FDRE HoPR): Provide legislative oversight, receive CSO policy briefs, hold public hearings, and ensure citizen voices are reflected.
- Ministry of Justice: Lead on law drafting and review; should be engaged when GPLA identifies legal gaps or reforms.
- Line Ministries: Co-analyze and revise sector-specific laws and policies in partnership with CSOs.
- EHRC, Ombudsman, and Auditor General: Serve as accountability platforms for follow-up, investigation, and public reporting of systemic gender gaps.
- Religious & Traditional Leaders: Facilitate grassroots legitimacy and address customary barriers through dialogue and cultural influence.
- Media & Networks: Disseminate GPLA findings, promote civic dialogue, and amplify community voice.

### 1.3.3 CSO Internal Readiness for GPLA Implementation

Identify intervention areas aligned with their mission. Collect data from your target communities avoid assumptions. Use the exercise below to guide your planning:

- Identify questions from the GPLA checklist for which you already have data.
- Identify additional data you need to collect.
- List specific respondents or sources for new data (e.g., FGDs, interviews, scorecards).
- Ensure leadership ownership by making GPLA a board and management agenda item.
- Assign trained experts capable of conducting the analysis.

- Align GPLA with organizational M&E systems and performance mechanisms.
- Train and orient assigned staff and teams.
- Provide needs-based support to experts/teams.
- Collaborate with like-minded CSOs and formal institutions to scale impact.

This manual is not just a reference it is a strategic tool. Effective GPLA requires internal readiness, collaboration, and strong accountability mechanisms. By clearly defining roles and planning implementation from the outset, CSOs can move from analysis to action and advocacy with credibility and impact.

## 1.4 Guiding Principles




This manual is grounded in the following principles, which shape both its content and methodology:

1. Feminist Approach: The manual adopts a feminist lens that recognizes power dynamics, challenges patriarchal norms, and advocates for transformative change that centers the voices and experiences of women and other marginalized groups.

2. Intersectionality: Recognizing that gender does not operate in isolation, the manual applies an intersectional framework that considers how factors such as class, ethnicity, disability, age, and location intersect to produce complex forms of discrimination.

3. Rights-Based Framework: The manual aligns with international human rights standards and national legal commitments. It emphasizes the role of CSOs and WROs as legitimate actors in holding duty-bearers accountable and advancing gender justice as a matter of rights—not charity.

4. Localization and Accessibility: The tools and frameworks presented have been tailored to the Ethiopian context, using local case studies and simplified formats to make the manual usable across various literacy and technical levels.

# 2 Understanding Gendered Legal and Policy Analysis



## 2.1 What Is Gendered Legal and Policy Analysis?

*Gendered legal and policy analysis is a systematic process of critically examining how laws, policies, and budgets affect people differently based on gender. It recognizes that laws and policies, even when written in gender-neutral terms, are embedded within social, cultural, and economic contexts that often perpetuate existing inequalities (Hankivsky, 2014). This approach goes beyond a literal reading of legal texts to interrogate their practical implementation, outcomes, and unintended consequences.*



The essence of gendered legal and policy analysis lies in identifying both the direct and indirect ways in which policies impact women and men. For instance, a labor law that provides equal leave entitlements to all employees may appear fair on the surface, yet in practice, it can reinforce gender roles if it does not account for women's disproportionate unpaid care responsibilities (UN Women, 2020). Similarly, policies that fail to address systemic barriers—such as access to legal aid, economic resources, or protection from violence—can inadvertently exclude women and marginalized groups from enjoying equal rights and opportunities (CEDAW Committee, 2015).

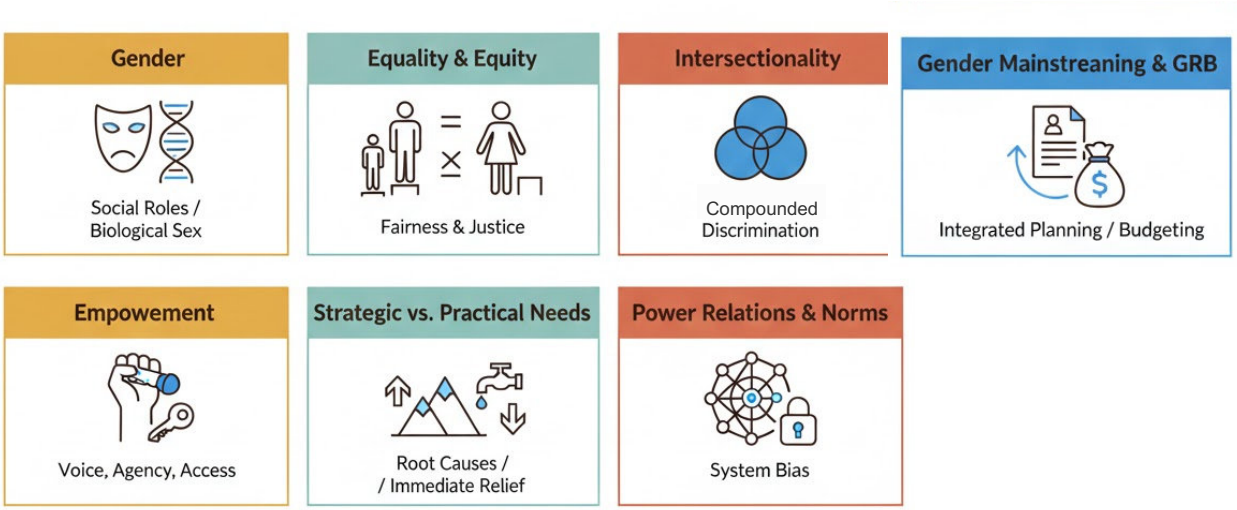
This analytical approach is also anchored in international human rights frameworks, particularly the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW), which obliges states to eliminate both de jure and de facto discrimination. Gendered analysis therefore requires a multidimensional perspective, taking into account intersections of gender with class, ethnicity, age, disability, and other social identities (Crenshaw, 1991; UNDP, 2016).

In practice, gendered legal and policy analysis functions not only as a diagnostic tool to expose inequality but also as a prescriptive framework to guide reform. It aims to promote inclusive policy-making, ensure equitable allocation of resources, and strengthen accountability mechanisms so that legal and policy systems actively advance gender justice (True, 2012; UN Women, 2020).

## 2.2 Why Gendered Legal and Policy Analysis Matters – Concepts and Imperatives

Gendered legal and policy analysis (GPLA) is a powerful and necessary tool for Women's Rights Organizations (WROs) and Civil Society Organizations (CSOs) in Ethiopia. It enables these actors to challenge structural inequalities, uncover hidden gender biases in laws and policies, and advocate for transformative reforms that promote justice and equality. Many policies may appear gender-neutral on the surface but have unequal impacts in practice, particularly on women, girls, and marginalized populations.

In the Ethiopian context, this work is especially urgent. Despite the presence of strong constitutional provisions like Article 35 of the FDRE Constitution and supportive laws like the Revised Family Code (2000), implementation remains weak due to entrenched patriarchal norms, resource constraints, and institutional capacity gaps. GPLA equips WROs and CSOs to bridge the gap between legal frameworks and lived realities.



At its core, GPLA draws on foundational gender concepts that help organizations frame their analysis, engage in policy dialogue, and promote inclusive change:

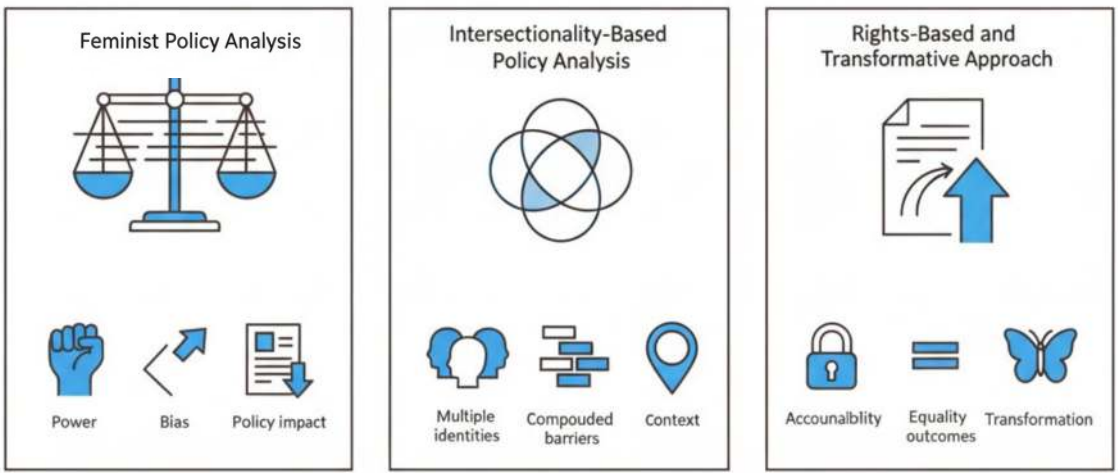
- **Gender** is a socially constructed set of roles and expectations that differ from biological sex. Understanding this distinction is key to analyzing how institutions perpetuate inequality.
- **Gender Equality and Equity** ensure that everyone has equal rights and outcomes, while acknowledging historical disadvantages that require compensatory measures.
- **Intersectionality** recognizes that gender discrimination is compounded by factors like class, disability, displacement, and ethnicity, which require nuanced, layered analysis.
- **Empowerment i**s about strengthening the voice, agency, and access of women and girls to challenge oppressive systems.
- **Strategic vs. Practical Needs:** While practical needs focus on daily survival (e.g., food, water), strategic needs aim to address root causes (e.g., land rights, legal protections).
- **Power Relations and Social** Norms: GPLA interrogates how power operates across household, community, and institutional levels, and how informal norms can undermine formal rights.
- **Gender Mainstreaming and GRB**: These approaches promote systemic integration of gender perspectives in all stages of policy, planning, and budgeting.

Through this lens, Ethiopian WROs and CSOs can:

- Reveal how gender and other identities intersect to create barriers;
- Build credibility by linking their analysis to global frameworks such as CEDAW, the SDGs, and the Maputo Protocol;
- Strategically engage across all stages of the policy cycle, even where participation is restricted;
- Produce actionable evidence and policy recommendations grounded in lived experience.

In essence, GPLA is more than an analytical tool it is a strategic imperative for building a more just, inclusive society where laws and policies truly serve the needs of all, especially those most often excluded.

## 2.3 Frameworks and Standards



Effective gendered legal and policy analysis requires grounding advocacy in robust conceptual frameworks and authoritative international and regional instruments. Together, these provide analytical lenses, normative standards, and practical guidance for assessing policies, identifying inequalities, and proposing transformative reforms. WROs and CSOs in Ethiopia can leverage these frameworks and instruments to strengthen evidence-based advocacy, ensure compliance with commitments, and advance women's rights.

### 1. Feminist Policy Analysis

Feminist policy analysis critically examines the role of power, gender relations, and patriarchal structures in shaping laws and policies (Walby, 2005; True, 2012). It goes beyond the formal language of legislation to interrogate how policies reinforce or challenge existing hierarchies and social norms.

This approach enables analysts to uncover structural biases, highlight hidden inequities, and propose interventions that promote substantive gender equality (Hankivsky, 2014).

### 2. Intersectionality-Based Policy Analysis (IBPA)

IBPA recognizes that individuals experience inequality along multiple, intersecting axes of identity, including gender, ethnicity, disability, age, and socioeconomic status (Crenshaw, 1989; Hankivsky, 2014). By assessing compounded disadvantages, WROs and CSOs can design policy recommendations that address the specific needs of marginalized populations. In Ethiopia, IBPA can reveal, for example, how rural women from minority ethnic groups face distinct barriers to accessing justice compared to urban women (UNDP, 2016).

### 3. Rights-Based and Transformative Approaches

Rights-based and transformative approaches treat gender equality as a fundamental human right and aim to address structural power imbalances that underlie discrimination (OHCHR, 2006; Mukhopadhyay, 2016). This framework integrates legal, social, and economic dimensions of rights, providing a pathway from formal equality to substantive equality. It guides policies to empower marginalized communities, promote social justice, and create enabling conditions for full participation in public, economic, and political life (CEDAW Committee, 2015; UN Women, 2020).

Together, these frameworks equip WROs and CSOs with the theoretical and practical tools to uncover entrenched inequalities, highlight overlooked issues, and formulate evidence-based, transformative policy interventions.

## 2.4 International and Regional Instruments

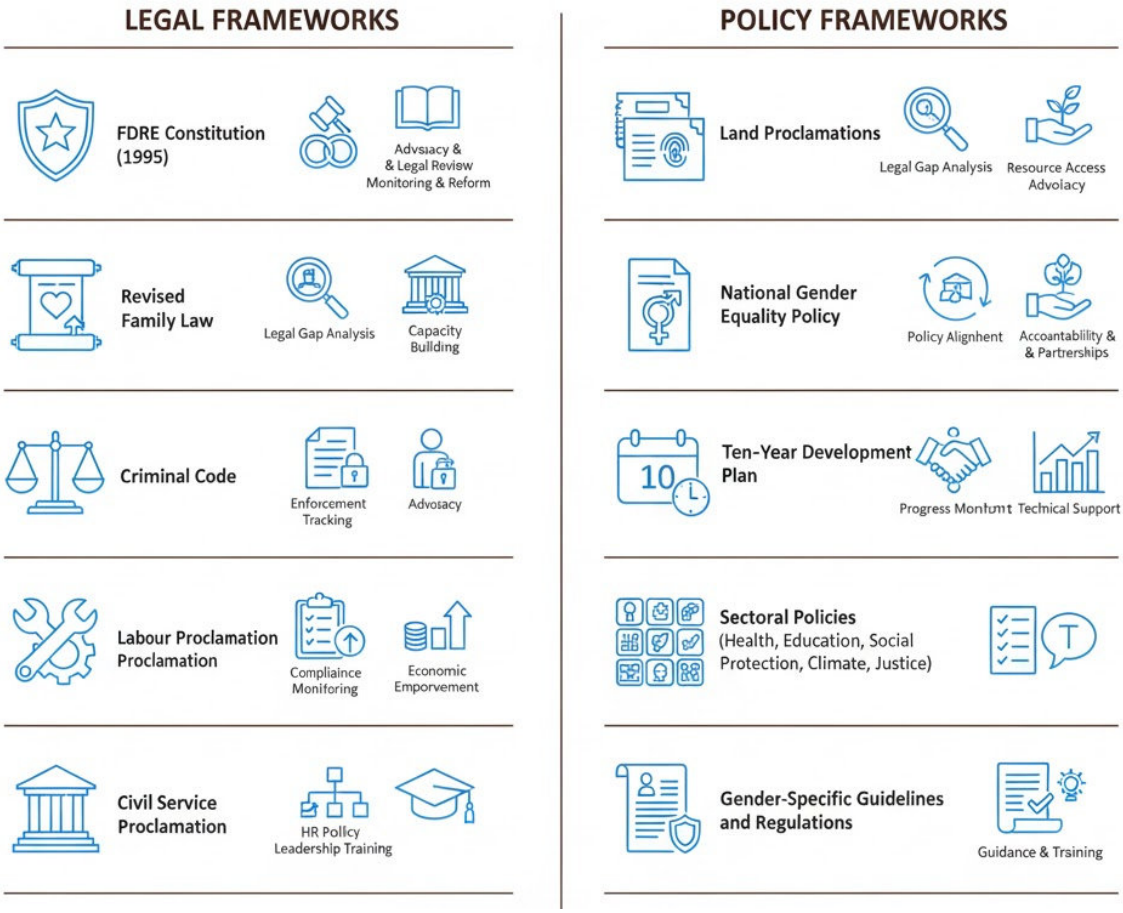
Grounding analysis in international and regional instruments enhances the credibility and impact of advocacy. These instruments establish normative standards, provide monitoring and accountability mechanisms, and guide alignment of national policies with globally recognized commitments to gender equality.

Key Instruments and Practical Applications

| Instrument | Key Focus | Practical Applications for WROs/CSOs |
|---|---|---|
| Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW) | Comprehensive standards to eliminate discrimination against women; ratified by Ethiopia in 1981. | • Compare domestic laws with CEDAW to identify gaps.<br>• Prepare shadow reports.<br>• Advocate for CEDAW-aligned legal reforms. |
| Beijing Platform for Action (1995) | Framework identifying twelve critical areas of concern for global women's rights. | • Align programs with strategic objectives.<br>• Monitor implementation.<br>• Benchmark policies against global gender standards. |
| Sustainable Development Goal 5 (SDG 5) and Related SDGs | Achieve gender equality and empower women and girls by 2030. | • Use SDG indicators for policy assessment.<br>• Ensure gender integration in broader development initiatives.<br>• Engage in reporting processes. |
| African Union Protocol on the Rights of Women in Africa (Maputo Protocol) | African framework for advancing women's rights and legal protection. | • Review legal compliance.<br>• Promote regional good practices.<br>• Build implementation capacity. |

## 2.5 Ethiopia's National Legal and Policy Frameworks

Understanding Ethiopia's national legal and policy frameworks is essential for a manual designed to equip WROs and CSOs with the tools for gendered legal and policy analysis. This knowledge provides the foundational context for identifying both the opportunities for advocacy and the barriers to gender equality. It is within this framework that WROs and CSOs must operate, making it a critical component of any effective strategy. These frameworks establish the legal obligations, policy priorities, and institutional mechanisms that shape gender equality in the country. By engaging with these instruments, organizations can identify gaps, monitor implementation, and advocate for reforms that advance women's rights.




Key National Instruments and Practical Applications

| Instrument | Summary & Applications for WROs/CSOs |
|---|---|
| Federal Democratic Republic of Ethiopia Constitution (1995) | Guarantees equality and prohibits sex-based discrimination (Art. 25 & 35).<br>- Compare existing laws with constitutional guarantees.<br>- Advocate for enforcement.<br>- Monitor government compliance. |
| Revised Family Law (Proclamation No. 213/2000) | Regulates marriage, inheritance, and property rights.<br>- Identify cultural and legal barriers.<br>- Advocate for amendments.<br>- Raise public awareness. |
| Criminal Code (Proclamation No. 414/2004) | Addresses SGBV and harmful practices.<br>- Assess protection gaps.<br>- Promote survivor-centered justice.<br>- Monitor enforcement. |
| Labour Proclamation (No. 1156/2019 and amendments) | Covers equal pay, harassment, and maternity protection.<br>- Review policies.<br>- Advocate gender-sensitive practices.<br>- Monitor implementation. |

| | |
|---|---|
| Civil Service Proclamation (No. 1064/2018 and amendments) | Promotes gender equality in public service.<br>- Identify advancement barriers.<br>- Recommend reforms.<br>- Support training and capacity building. |
| Land Proclamations and Regulations | Govern access and control over land.<br>- Examine barriers.<br>- Advocate for equitable policies.<br>- Monitor implementation. |
| National Gender Equality Policy | Outlines national gender priorities.<br>- Evaluate implementation.<br>- Monitor gender targets.<br>- Align with global commitments. |
| Ten-Year Development Plan (2021–2030) | Integrates gender across development sectors.<br>- Track gender indicators.<br>- Identify reform gaps. |
| Sectoral Policies (Health, Education, etc.) | Sector-specific gender initiatives.<br>- Health: Monitor maternal & SRH services.<br>- Education: Track gender parity.<br>- Social Protection: Assess inclusivity.<br>- Climate: Review gender action plans.<br>- Justice: Monitor reform outcomes. |
| Gender-Specific Guidelines and Regulations | Operationalize gender laws and policies.<br>- Examine implementation bottlenecks.<br>- Advocate for practical enforcement. |

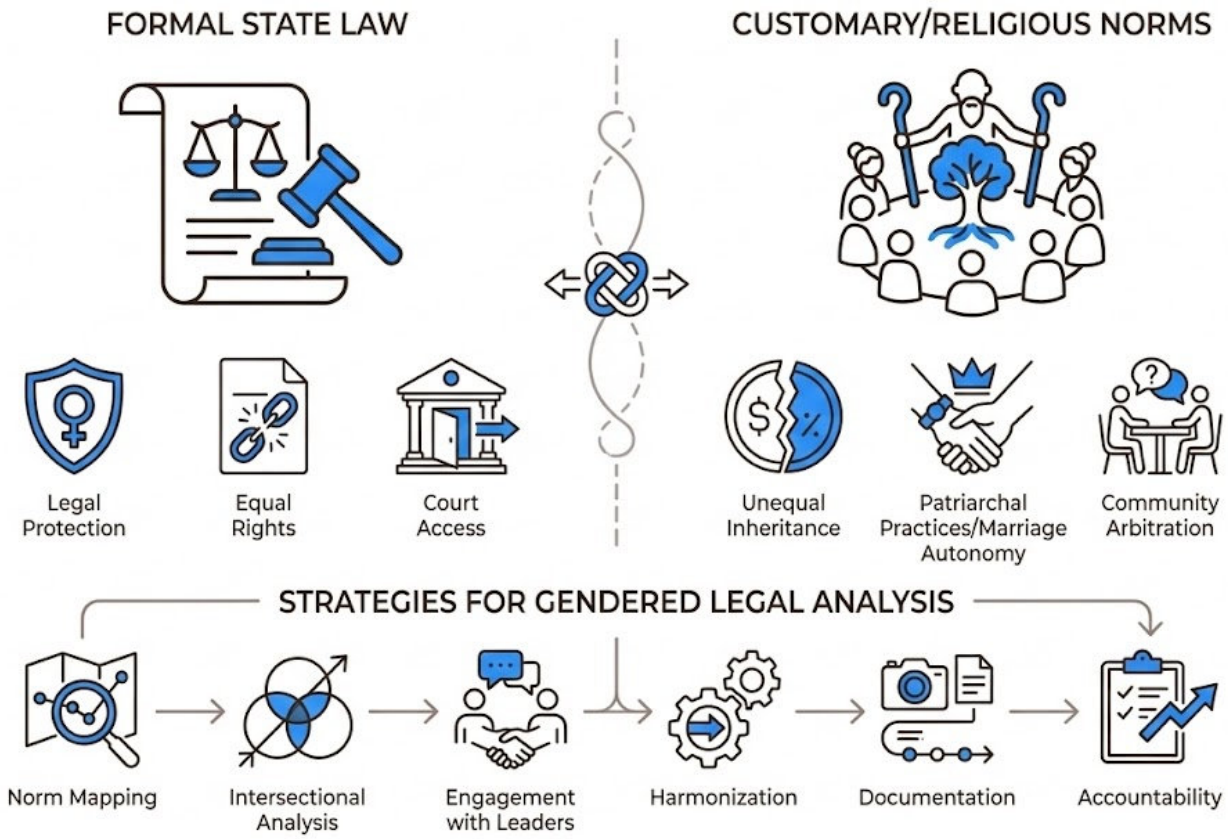
## 2.6 Legal Pluralism and the Role of Customary and Religious Norms in Gendered Legal and Policy Analysis

Ethiopia's legal system is pluralistic, combining formal state laws with customary and religious laws—particularly influential in rural and pastoralist communities. While the FDRE Constitution (Art. 35) guarantees gender equality, Article 34(5) allows for personal matters (like marriage or inheritance) to be governed by religious or customary systems. This duality can create tension between rights-based protections and traditional norms.

Common gendered impacts include:

- Inheritance bias: Custom often excludes women from owning land.
- Religious rulings: Divorce or marriage settlements may neglect women's autonomy.
- Community arbitration: Traditional dispute resolution (e.g., shimgilina) may prioritize social harmony over survivors' rights.

Despite offering accessible justice, these informal systems often lack safeguards and reinforce gender hierarchies.

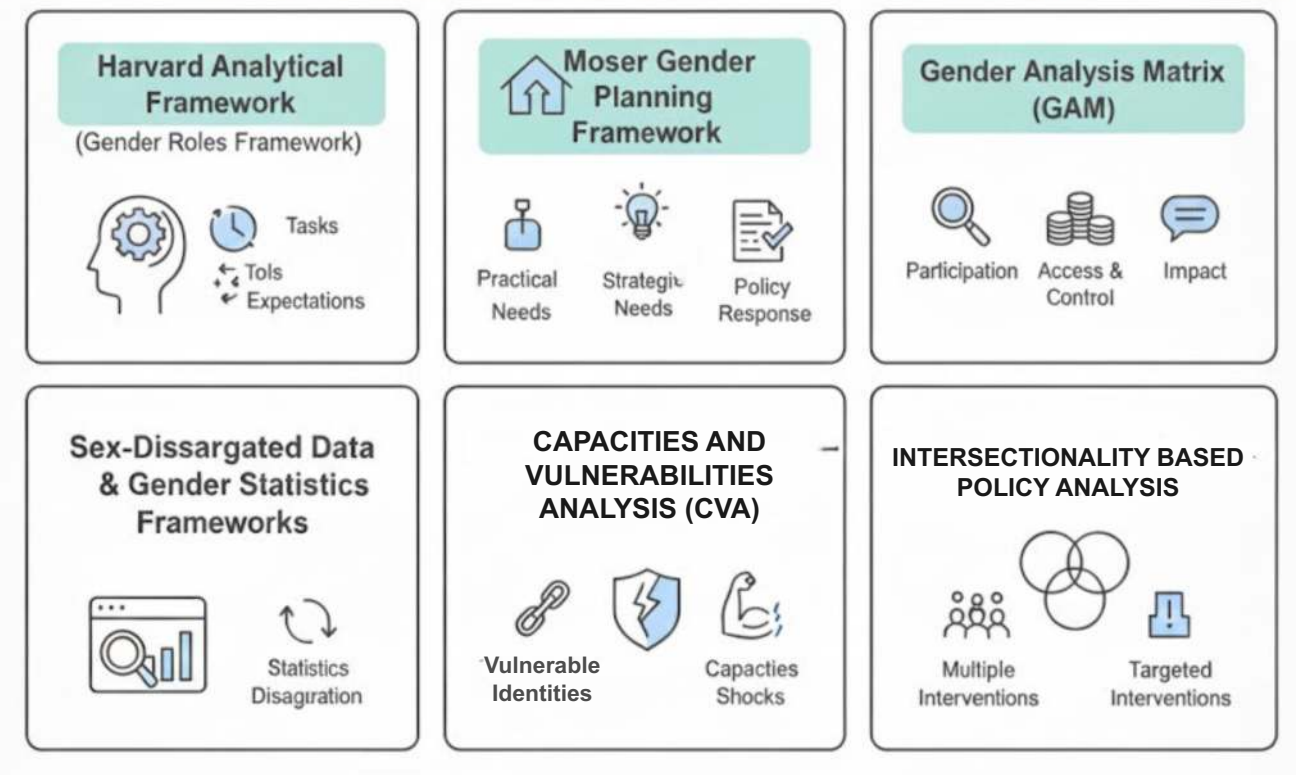



Strategies for Gendered Legal Analysis under Legal Pluralism:

1. Map dominant norms in the area and assess their impact.
2. Apply intersectional analysis to reflect religion, gender, and geography.
3. Engage traditional and religious leaders to promote rights-based interpretations.
4. Bridge formal and informal systems by advocating harmonized, gender-sensitive laws.
5. Document contradictions to expose gaps in legal protection.
6. Use constitutional and international frameworks (e.g., CEDAW) for accountability and reform.

## 2.7 Gender Analysis Frameworks in Use

These gender analysis frameworks provide WROs and CSOs with proven tools for diagnosing inequality, understanding systemic causes, and developing transformative policy solutions. By selecting and adapting these frameworks to the Ethiopian context, organizations can strengthen evidence-based advocacy, support inclusive policymaking, and advance sustainable gender equality. The GPLA Manual draws on these frameworks as the foundation for its analytical and advocacy approach.



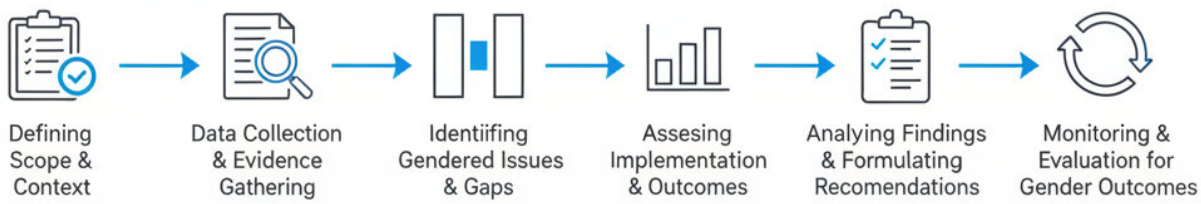
| Framework | Core Focus / Description | Key Elements / Analytical Dimensions | Practical Application |
|---|---|---|---|
| Harvard Analytical Framework (Gender Roles Framework) | One of the earliest frameworks, designed for development planning; analyzes gender roles and access to resources. | • Activities: Tasks performed by women and men in households, communities, and workplaces.<br>• Access & Control: Differences in access to and control over income, land, education, etc.<br>• Influencing Factors: Social, cultural, and economic determinants shaping gender roles. | Used to identify inequalities in access to services and resources, and to design interventions that equitably redistribute opportunities and benefits. |
| Moser Gender Planning Framework | Distinguishes between short-term and long-term gender needs in development and policy planning. | • Practical Needs: Immediate necessities like health, water, and income.<br>• Strategic Needs: Structural issues like legal rights, political participation, and power relations. | Helps ensure that both welfare needs and empowerment goals are addressed in policies and programs, promoting holistic gender equality. |
| Gender Analysis Matrix (GAM) | A participatory tool used to assess how programs or policies affect different gender groups. | • Access to resources<br>• Roles & responsibilities<br>• Needs & priorities<br>• Decision-making power | Useful for evaluating gendered effects of policies or projects, identifying unintended consequences, and designing corrective measures. |
| Sex-Disaggregated Data and Gender Statistics Frameworks | Promoted by UN Women and the World Bank; emphasizes data-driven gender analysis and accountability. | • Collection of sex-disaggregated data<br>• Development of gender indicators<br>• Quantitative and qualitative analysis of outcomes | Enables analysis of gender disparities across sectors, supports evidence-based advocacy, and strengthens gender-responsive budgeting and program design. |
| Capacities and Vulnerabilities Analysis (CVA) | A framework used in humanitarian and development settings to assess risks and capacities through a gender lens. | • Vulnerabilities (e.g., poverty, displacement)<br>• Capacities (e.g., skills, networks, coping mechanisms)<br>• Gendered roles in risk reduction | Used to design programs that reduce vulnerabilities, strengthen women's resilience, and ensure inclusive recovery in crises or post-conflict contexts. |
| Intersectionality -Based Policy Analysis (IBPA) Tool | Focuses on how overlapping identities—gender, ethnicity, class, disability—shape individual and collective experiences. | • Intersecting identities<br>• Power dynamics and systemic barriers<br>• Equity-focused policy design | Supports development of inclusive, context-sensitive policies that address multiple forms of marginalization, especially for rural and conflict-affected women. |

# 3 Synthesis of the Gendered Policy Analysis Framework: A Step-by-Step Process



This section presents a practical, six-step framework for conducting gendered legal and policy analysis. It integrates conceptual frameworks, international and regional instruments, and methodological guidance to enable WROs and CSOs to systematically identify gender inequalities, assess policy effectiveness, and propose actionable reforms. The process is designed to be iterative, allowing analysts to refine their findings as new evidence emerges (Hankivsky, 2014; True, 2012).

## 3.1 The Step-by- Step guide



### Step 1: Defining the Scope and Context

Before analysis begins, it is essential to define the law, policy, or program under review. This involves:

- Clarifying Purpose: Understand the objectives, intended outcomes, and rationale for the policy or law.
- Identifying Target Groups: Determine which populations (women, men, and marginalized groups) are directly or indirectly affected.
- Mapping Stakeholders: Identify key actors, including government institutions, civil society, community leaders, and international partners, to understand who influences and implements the policy.

A clear scope ensures the analysis is focused, relevant, and actionable (Rai & Waylen, 2014).

### Step 2: Data Collection and Evidence Gathering

Effective analysis relies on comprehensive evidence. Key tasks include:

- Document Review: Collect legal texts, policy documents, budgets, program guidelines, monitoring reports, and previous evaluations.
- Gender-Disaggregated Data: Gather quantitative and qualitative data reflecting differential impacts on women, men, and marginalized populations.
- Contextual Information: Review social, cultural, and economic conditions influencing the policy's implementation and outcomes.

Reliable data underpins credible advocacy and strengthens recommendations (UN Women, 2020; Oxfam, 2019).

### Step 3: Identifying Gendered Issues and Gaps

This is the core analytical phase, integrating both legal and policy perspectives:

Legal Analysis:

- Examine the language of laws to identify explicit discrimination or subtle biases.
- Analyze "gender-neutral" provisions that may inadvertently produce unequal outcomes.

Policy Analysis:

- Assess whether policy objectives, design, and mechanisms incorporate gender considerations.
- Use checklists and templates (Template 1) to systematically evaluate inclusion of both practical and strategic gender needs.

### Step 4: Assessing Implementation and Outcomes

Analyzing the practical application of laws and policies ensures that commitments translate into real-world impacts:

- Institutional Responsibilities: Identify which bodies are accountable for implementation and assess their capacity and resources.
- Budget and Resource Allocation: Evaluate whether funding is gender-responsive and addresses gender-specific needs (Budlender & Hewitt, 2003).

• Monitoring and Accountability: Check for mechanisms tracking gender outcomes, including reporting requirements, audits, and participatory evaluations (UN Women, 2014).

### Step 5: Analyzing Findings and Formulating Recommendations

Synthesize collected evidence to identify key disparities and gaps. Recommendations should be:

• Specific: Clearly define the issue and proposed solution.

• Measurable: Include indicators to track progress.

• Achievable: Consider institutional capacity and resources.

• Relevant: Align with national priorities and international obligations.

• Time-bound: Specify timelines for implementation.

The Templates will guide WROs and CSOs in structuring findings and recommendations for advocacy, policy reform, or program design.

### Step 6: Monitoring and Evaluation for Gender Outcomes

Continuous monitoring ensures accountability and measures the impact of policies on gender equality:

• Define Indicators: Identify qualitative and quantitative measures of gender outcomes, including disaggregated data.

• Establish Accountability Mechanisms: Ensure duty-bearers are responsible for delivering gender-sensitive outcomes.

• Feedback Loops: Use evaluation results to inform policy revision, program improvement, and sustained advocacy (Mukhopadhyay, 2016; UN Women, 2014).

# 4 Practical Tools and Templates



## 4.1 Gendered Policy/Legal Analysis Checklist

This checklist is a systematic and practical tool designed to help you conduct a thorough gendered analysis of any policy, legal document, or administrative procedure.

Purpose:

Its purpose is to move beyond superficial observations and enable you to uncover hidden biases, unintended negative impacts, and missed opportunities to promote gender equality. By using this tool, you can gather specific evidence to support your advocacy, strengthen your arguments for reform, and ensure that new policies are genuinely equitable and just for all people.

How to Use:

To use this checklist, first select a specific policy or law and gather all relevant resources, including the official text, data (disaggregated by gender), and anecdotal evidence from community members. Next, systematically work through each question on the checklist, documenting your findings and observations in the "Evidence/Notes" column to identify where the policy falls short or contains gender biases. Use the collected evidence and your analysis to formulate concrete, evidence-based recommendations for improvement. Finally, use the completed checklist and your recommendations to inform your advocacy strategy, prepare policy briefs, and engage in dialogue with policymakers, as the checklist is a tool to support your efforts, not an end in itself.

| Gendered Policy Analysis Checklist | | | |
|---|---|---|---|
| Analysis Area | Key Questions | Evidence/ Notes | Recommend ations |
| Problem Definition and Framing | Who defined the problem? Whose experiences and perspectives are prioritized, and whose are absent? Is the "problem" framed as an individual failing or a systemic issue? | | |
| | What assumptions are embedded in the problem's definition? Does it ignore certain segments of women? | | |
| | Does the problem definition address the root causes of inequality? Is it leading to a temporary fix or a long-term solution? | | |
| Language | Does the policy explicitly discriminate based on gender? | | |
| | Are terms like "vulnerable women" or "at-risk youth" used in ways that stigmatize? | | |
| | Does it use universal, gender-neutral language that may produce unequal outcomes in practice, for example, assuming everyone has the same ability to access services? | | |
| | Does the policy language inadvertently create a hierarchy of deservingness, where some groups are seen as more deserving of aid or protection than others? | | |
| Policy Objectives | What are the stated and unstated goals of the policy? Are they SMART? | | |
| | Does the policy explicitly aim to reduce gender inequalities? | | |
| | Are women's and men's needs are equally considered in goals and targets? | | |
| | How do the policy's objectives affect different groups of women (ethnicity, age, religion, disability) differently? | | |
| | How does the policy account for power dynamics beyond gender? Does the policy address overlapping and compounding forms of oppression? Does it address how ethnicity, class, disability, religion, and geographic location intersect to create unique experiences of marginalization or privilege? | | |
| | Does it genuinely aim to achieve substantive equality (equity of outcomes) or simply formal equality (equality of opportunity)? | | |
| | Does it empower individuals or reinforce their dependence on the state or other institutions? | | |
| Stakeholder Inclusion | Are women, and marginalized groups, and CSOs consulted during formulation? | | |
| | Are mechanisms in place for ongoing participation? Can affected communities provide feedback and challenge the policy if it is not meeting their needs? Is there a formal process for redress if the policy causes harm? | | |

| | | | |
|---|---|---|---|
| Practical Gender Needs | Does the policy address immediate, practical needs of women and marginalized groups (e.g., access to services, safety, resources)? | | |
| Strategic Gender Needs | Does the policy promote long-term structural change and empowerment (e.g., decision-making power, leadership, rights enforcement)? | | |
| Potential Unintended Impacts | Could the policy inadvertently reinforce inequality? | | |
| Budgeting and Implementation | Are there resources and mechanisms to implement gender provisions effectively? | | |
| | Does it allocate a gender-specific budget to address inequalities? | | |
| Data and Evidence | What data and evidence were used to inform the policy? Was the data disaggregated by gender and other relevant factors (ethnicity, age, disability, etc.)? | | |
| | Are context-specific gender risks and vulnerabilities considered? | | |
| | Does the policy have a built-in mechanism for monitoring and evaluation? Is data being collected to track the policy's impact on different groups of people? | | |
| | Are there specific indicators or benchmarks to measure progress toward gender equality and social justice? Are these indicators focused on outcomes (e.g., increased income for marginalized groups) rather than just outputs (e.g., number of people served)? | | |
| | Is there a transparent process for accountability if the policy fails to meet its goals or causes unintended harm? | | |
| | Who is responsible for ensuring the policy works for everyone? Is it clearly stated? | | |

## 4.2 Legal/Policy Audit Checklist

This comprehensive checklist is your go-to tool for a thorough review of any law or policy. It helps you assess its compliance with national and international human rights standards. Think of it as a legal x-ray that reveals both visible and hidden issues. It is a game-changer as it goes beyond the surface, empowers advocacy efforts and serves as a roadmap to justice.

Purpose:

To conduct a comprehensive audit of a law or policy against specific legal standards and identify gaps in compliance.

How to Use This Checklist:

This tool requires you to be familiar with the relevant legal documents, such as the FDRE Constitution, the Criminal Code, and international treaties like CEDAW.

Use the Findings column to record your observations, the Gap Identified column to pinpoint where the law or policy falls short, and the Recommendation column to propose specific, actionable changes.

N.B. You can cite the specific articles and provide evidence of compliance or non-compliance.

| Legal Framework | Compliance Question | Findings | Gap Identified | Recommendation |
|---|---|---|---|---|
| FDRE Constitution (1995) | Is the law/policy in full alignment with Article 35 on the Rights of Women? | | | |
| | Does the law or policy uphold the principle of substantive equality as implied in the Constitution? | | | |
| Revised Family Law (2000) | Does the policy contradict any provisions of the Revised Family Law that protect women's rights in marriage or inheritance? | | | |
| | Are there inconsistencies that limit women's agency and decision-making power? | | | |
| Criminal Code | Does the policy contradict articles within the criminal code? | | | |
| | Does the policy weaken protections or create barriers for survivors of sexual and gender-based violence (SGBV) and harmful traditional practices (HTPs)? | | | |
| Labour Proclamation | Does the law/ policy fall short of any labour Proclamation articles? | | | |
| | Does it address the unpaid care burden often faced by women? | | | |
| Civil Service Proclamation | Does the law/policy violate any of the provisions of the Civil Service Proclamation? | | | |
| | Does the policy promote or hinder gender parity and women's advancement in public sector employment and leadership? | | | |
| CEDAW | Does the law violate or fall short of any CEDAW articles (e.g., on political participation, education, or employment)? Is there evidence that the policy or law perpetuates "de facto" discrimination, even if not "de jure"? | | | |
| Maputo Protocol | Does the policy align with the Maputo Protocol on issues such as violence against women, economic rights, or health? | | | |
| Sustainable Development Goal 5 (SDG 5) and Related SDGs | Does the law/policy align with Sustainable Development Goal 5 and related SDGs? | | | |

## 4.3 Intersectional Impact Matrix

This matrix is a powerful tool for a deep, nuanced analysis of a policy's effects. It moves beyond a simple "women vs. men" comparison to reveal how a person's multiple identities—such as gender, ethnicity, disability, and socioeconomic status—combine to create unique experiences of advantage or disadvantage. Think of it as a multi-layered map that shows the complex reality of people's lives. In general, it's a vital tool since it identifies "hidden" inequality, empowers targeted advocacy, and encourages inclusivity.

Purpose:

To reveal how a policy might create compounded disadvantages or benefits for people with multiple marginalized identities.

| Policy / Law | Group (Gender / Ethnicity / Age / Disability / SES) | Impact (Positive / Negative) | Barriers / Challenges | Recommendations |
|---|---|---|---|---|
| | | | | |
| | | | | |

How to Use This Matrix:

Start by identifying the policy you want to analyze. Then, select several different social identity groups that are relevant to your context. Use each row to analyze a specific group and fill in the columns based on your research and community consultations.

## 4.4 Policy Influence Planning Sheet

This tool is a strategic roadmap for your advocacy campaign, helping you translate analysis into action. Instead of reacting to policies, you can proactively plan your interventions at the most impactful points of the policy cycle. This sheet helps you identify key entry points, define your advocacy goals, and assign clear responsibilities and timelines to ensure your efforts are strategic and effective.

| Stage in the Policy Cycle | Our Analysis | Our Advocacy Goal | Specific Action | Responsible Person/Team | Timeline |
|---|---|---|---|---|---|
| Agenda Setting | | | | | |
| Policy Formulation | | | | | |
| Policy Adoption (Decision-Making) | | | | | |
| Implementation | | | | | |
| Monitoring and Evaluation (M&E) | | | | | |
| Policy Review and Reform | | | | | |

Purpose:

To translate a gendered analysis into a clear, actionable advocacy strategy.

How to Use This Sheet:

Fill out this sheet by thinking through the entire policy process, from its inception to its review. Your entries should be specific and grounded in your analysis.

## 4.5 Advocacy Tracking Sheet

The Advocacy Tracking Sheet is a practical tool for monitoring the day-to-day progress of your campaign. It's designed to be a "living document," updated regularly to keep your team organized, accountable, and responsive. This sheet helps you log every interaction and outcome, ensuring you can clearly see what's working and what's not. In sum, it's an essential tool since it provides a real-time record of your advocacy efforts, preventing duplication and ensuring no opportunities are missed, boosts accountability and informs strategy.

Purpose: To track all advocacy actions, meetings, and outcomes in one place.

How to Use This Sheet: Maintain this as a digital or physical document, updating it after every meeting, email, or event. Be specific and detailed in your entries.

| Advocacy Activity | Target Stakeholder | Date / Duration | Status | Outcome / Impact | Next Steps | Responsible Actor | Remark |
|---|---|---|---|---|---|---|---|
| | | | | | | | |
| | | | | | | | |

## 4.6 Gender Budgeting Snapshot

This is a tool for a quick, focused analysis of a specific budget line or program from a gender perspective. It acts as a financial magnifying glass, allowing you to see beyond policy promises to the reality of government spending. It helps you answer a crucial question: Is the budget following the commitment to gender equality?

Purpose:

To understand who benefits from public spending and whether budget allocations align with gender equality commitments.

How to Use:

Select a specific sector or government program that you want to analyze. Fill out the table by examining the budget documents, identifying the beneficiaries of the spending, and then assessing whether the allocation is truly gender-responsive

| Sector / Program | Budget Allocation | Gender-Responsiveness (Yes / No) | Gap / Issue | Recommendation | Responsible body for follow up |
|---|---|---|---|---|---|
| | | | | | |
| | | | | | |

## 4.7 Gender Auditing Snapshot

This is a tool for a quick, structured assessment of whether an organization's internal systems, culture, and operations are aligned with gender equality principles. It acts as an institutional mirror—helping you identify gaps between gender-related commitments and actual practices. The snapshot helps answer a vital question: Does the organization "walk the talk" on gender equality?

Purpose: To examine the degree to which gender equality is mainstreamed into the internal functioning of an organization, and identify areas for improvement.

How to Use: Select an organization (government body, CSO, or other institution). Using the table below, reflect on each thematic area by reviewing internal documents, interviewing staff, or observing practice. Rate the performance, identify key observations, and propose next steps for institutional strengthening.

| Audit Area | What to Examine | Observ-ations | Rating (1 low –5 high) | Action Required | Responsible body to follow up |
|---|---|---|---|---|---|
| Leadership & Governance | Are gender equality goals reflected in leadership structure, policies, and accountability systems? | | | | |
| HR & Staffing | Do recruitment, promotion, and retention policies support gender equity and diversity? | | | | |
| Organizational Culture | Is the internal environment respectful, inclusive, and gender-sensitive? | | | | |
| Capacity & Knowledge | Do staff have adequate training and tools to apply gender analysis in their work? | | | | |
| Programs & Projects | Are gender dimensions integrated in program design, implementation, and outcomes? | | | | |
| Participation & Voice | Do diverse staff (including women, youth, PWD) participate in decision-making processes? | | | | |
| Monitoring & Evaluation | Are gender indicators used? Are results disaggregated by sex and other factors? | | | | |

## 4.8 Scorecard for Implementation Review

This tool is your ultimate check on whether a policy is actually making a difference on the ground. A policy might be perfectly written, but if it's not implemented well, its impact can be zero or even negative. This scorecard helps you measure the gap between policy promises and practical reality by assessing its implementation from a gender and intersectional perspective.

Purpose:

To assess the effectiveness of a policy's implementation, identify barriers, and gather evidence for reform.

How to Use:

Use this tool as a framework for your field research, interviews, or focus group discussions with the policy's target beneficiaries and officials. For each area, you can identify specific indicators, set a target, and then measure the actual result. The Rating (1-5) provides a quick visual summary, while the comments and action required sections guide your analysis and recommendations.

| Implementation Area | Indicator | Target | Actual | Rating (1-5) | Comments / Observations | Action Required | Responsible body |
|---|---|---|---|---|---|---|---|
| Institutional Capacity | | | | | | | |
| Stakeholder Participation | | | | | | | |
| Resource Allocation | | | | | | | |
| Gender Outcomes | | | | | | | |
| Monitoring & Evaluation | | | | | | | |

# 5 Conclusion

The Gendered Policy and Legal Analysis (GPLA) Manual is a strategic and practical tool designed to empower Women's Rights Organizations (WROs), Civil Society Organizations (CSOs), and other stakeholders to systematically identify, interrogate, and influence laws and policies from a gender justice perspective. In contexts like Ethiopia, where structural inequalities persist despite progressive legal frameworks, GPLA enables actors to bridge the gap between rights on paper and realities on the ground.

The manual offers accessible, step-by-step guidance grounded in feminist, intersectional, and rights-based approaches, tailored to the Ethiopian context. It includes practical tools, real-life scenarios, and a roadmap for transforming gendered insights into actionable advocacy and accountability mechanisms. Moreover, it emphasizes the role of CSOs not only in conducting analysis but in sustaining pressure for equitable implementation and legal reform.

Through inclusive dissemination, ongoing capacity building, and collaborative advocacy, this manual can serve as a living document one that grows with the experiences of those who use it and remains responsive to emerging challenges. Ultimately, the success of GPLA depends on the commitment of all actors CSOs, government bodies, donors, academia, religious and community leaders, and rights holders themselves to advance gender equality, uphold justice, and build a society where no one is left behind.



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